

25STCV29087 25STCV29087

County: los-angeles

Division: Civil Law and Motion

Department: 733

Hearing date: 2026-09-23

Motion: DEFENDANT'S MOTIONS TO COMPEL FURTHER RESPONSES TO REQUESTS FOR PRODUCTION, SET ONE; SPECIAL INTERROGATORIES, SET ONE FORM INTERROGATORIES, SET ONE; AND REQUESTS FOR ADMISSION, SET ONE

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Case Number: 25STCV29087 Hearing Date: September 23, 2026 Dept: 733

SUPERIOR COURT OF THE STATE OF
CALIFORNIA

FOR THE COUNTY OF LOS ANGELES

ALEXYS

WATSON, an individual,

Plaintiff,

vs.

SONJA JEAN TRONCOSO, an individual, and
DOES 1 through 100, inclusive,

Defendants.

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CASE

NO.: 25STCV29087

[TENTATIVE] ORDER RE: DEFENDANT'S MOTIONS

TO COMPEL FURTHER RESPONSES TO REQUESTS FOR PRODUCTION, SET ONE; SPECIAL
INTERROGATORIES, SET ONE FORM INTERROGATORIES, SET ONE; AND REQUESTS FOR
ADMISSION, SET ONE

Dept. 733

8:30 a.m.

September 23,
2026

I.

INTRODUCTION

This

action arises from Defendant's alleged unlawful refusal to rent out a Property
to Plaintiff based on Plaintiff's use of a voucher pursuant to the Section 8
Housing Choice Voucher Program, which is Plaintiff's source of income.

On

October 3, 2025, Plaintiff Alexys Watson ("Plaintiff") filed a complaint
against Defendant Sonja Jean Trncoso ("Defendant"), alleging causes of action
for (1) Fair Employment and Housing Act, Cal. Gov't Code § 12955 subd. (a),

(d), (g) and (k); (2) Fair Employment and Housing Act, Cal. Gov't Code § 12955 subd. (c); (3) Unruh Civil Rights Act, Cal. Civ. Code § 51 et seq.; (4) Negligence, Cal. Civil Code §1714; and (5) Los Angeles Municipal Code, Chapter IV, Article 5.6.1.

On

May 27, 2026, Defendant filed the instant motions to compel further responses to Request for Admissions, set one ("RFAs"), Requests for Production, set one ("RFPDs"), Special Interrogatories, set one ("SROGs") and Form Interrogatories, set one ("FROGs") ("Discovery Requests").

No

opposition was filed to either motion.

II.

LEGAL STANDARD

1.

Interrogatories

Within 30 days after service of interrogatories, the party to whom the interrogatories are propounded shall serve response to them on the propounding party, unless otherwise stipulated or ordered. (Code Civ. Proc. § 2030.260, subd. (a).) Code of Civil Procedure section 2030.300 sets forth, in relevant part, that a propounding party may move for an order compelling a further response to an interrogatory if the propounding party deems that:

(1) An answer to a particular interrogatory is evasive or incomplete.

(2) An exercise of the option to produce documents under Section 2030.230 is unwarranted or the required specification of those documents is inadequate.

(3) An objection to an interrogatory is without merit or too general.

(Code Civ. Proc., § 2030.300, subd. (a).) If a party fails to timely respond to interrogatories, they waive any objection to the

interrogatories, which the court may relieve based on a determination that the party subsequently served a compliant response and the party's failure to serve a timely response was the result of mistake, inadvertence, or excusable neglect. (Code Civ. Proc., § 2030.290.)

2.

Requests for Admission

For requests for admissions, the only proper responses are to 1) admit, 2) deny, or 3) state that a reasonable inquiry concerning the matter in the particular request has been made, and that the information known or readily obtainable is insufficient to enable that party to admit the matter. (Code Civ. Proc. § 2033.220(b).) Where any portion of the request is true the party to whom it is directed must admit that portion: "Each answer shall ... [a]dmit so much of the matter involved in the request as is true, either as expressed in the request itself or as reasonably and clearly qualified by the responding party." (Id. § 2033.220(b)(1).) Whether an admission is admitted to or denied, the admission or denial must be "as complete and straightforward" as the information available reasonably permits. (Id. § 2033.220(a), (b)(1).)¿

Where responses to requests for admissions have been served but requesting party believes that they are deficient because the answers are evasive or incomplete or because an objection is without merit, that party may move for an order compelling a further response. (Code Civ. Proc., § 2033.290, subd. (a).)

3.

Requests for Production

Code of Civil Procedure section 2031.220 states: "A statement that the party to whom a demand for inspection, copying, testing, or sampling has been directed will comply with the particular demand shall state that the production, inspection, copying, testing, or sampling, and related activity demanded, will be allowed either in whole or in part, and that all documents or things in the demanded category that are in the possession, custody, or control of that party and to which no objection

is being made will be included in the production.”

Code

of Civil Procedure section 2031.320(a)

states: “If a party filing a response to a demand for inspection, copying, testing, or sampling under Sections 2031.210, 2031.220, 2031.230, 2031.240, and 2031.280 thereafter fails to permit the inspection, copying, testing, or sampling in accordance with that party's statement of compliance, the demanding party may move for an order compelling compliance.”

The demanding party may move for an order compelling further responses to the demand if the demanding party deems that (1) a statement of compliance with the demand is incomplete, (2) a representation of inability to comply is inadequate, incomplete, or evasive, or (3) an objection in the response is without merit or too general. (Code Civ. Proc., § 2031.310(a).)

Motions to compel further

responses to Requests for Production must set forth specific facts showing good cause justifying the discovery sought by the request. (Code Civ. Proc., § 2031.310(b).) To establish good cause, a discovery proponent must identify a disputed fact that is of consequence in the action and explain how the discovery sought will tend in reason to prove or disprove that fact or lead to other evidence that will tend to prove or disprove the fact. (Digital Music News LLC v. Superior Court (2014) 226 Cal.App.4th 216, 224, disapproved on other grounds by Williams v. Superior Court (2017) 3 Cal.5th 531; see also Kirkland v. Superior Court (2002) 95 Cal.App.4th 92, 98 [characterizing good cause as “a fact-specific showing of relevance”]; Tbg Ins. Servs. Corp. v. Superior Court (2002) 96 Cal.App.4th 443, 448 [the burden to show good cause for production “is met simply by a factspecific showing of relevance.”].) If good cause is shown by the moving party, the burden shifts to the responding party to justify any objections made to disclosure of the documents. (Kirkland, *supra*, 95 Cal.App.4th at 98.)

Code

Complaint Response

A code-compliant response to a request for production consists of any of the following: (1) a statement that the party will comply, (2) a

representation that the party lacks the ability to comply, or (3) an objection. (Code Civ. Proc., § 2031.210.) A statement that the party will comply must state that the requests for production “will be allowed either in whole or in part, and that all documents or things in the demanded category that are in the possession, custody, or control of that party and to which no objection is being made will be included in the production.” (Id. § 2031.220.) “If only part of an item or category of item in a demand for inspection, copying, testing, or sampling is objectionable, the response shall contain a statement of compliance, or a representation of inability to comply with respect to the remainder of that item or category.” (Id. § 2031.240(a).) If an objection is made, the responding party must “[i]dentify with particularity any document, tangible thing, land, or electronically stored information falling within any category of item in the demand to which an objection is being made.” (Id. § 2031.240(b)(1).)

III. DISCUSSION

A. Procedural Defects

The Court finds there exist defects with Defendant's motions to compel further discovery

responses.

Defendant failed to submit a code-compliant separate statement to any of the motions. According to California Rules of Court, rule 3.1350(c)(2), a motion to compel further responses must always be accompanied by a separate statement containing the requests and the responses, verbatim, as well as reasons why a further response is warranted. (Cal. Rules of Court, rule 3.1345(a).) The separate statement must provide “The text of the request, interrogatory, question, or inspection demand” and “The text of each response, answer, or objection, and any further responses or answers.” (Id. rule 3.1345(c)(1-2).)

Defendant

also neither in his Notice of Motion nor in his Memorandum of Authorities identify “the interrogatories, demands, or requests by set and number” pursuant to California Rules of Court, rule

3.1345(d).

The

Court denies Defendant's motions on these bases. (Mills

v. U.S. Bank (2008) 166 Cal. App. 4th 871,

893 [holding that the trial court was "well within its discretion to deny the motion to compel discovery" on the grounds that Plaintiffs "did not set forth the full response to each of the discovery requests"]; Neary v.

Regents of University of California (1986) 185 Cal.App.3d 1136, 1145

[describing trial court's denial of motions to compel discovery because of a nonconforming separate statement].)

IV. CONCLUSION

Based on the foregoing, Defendant's Motions
to Compel Further Discovery Responses are DENIED in their entirety.

Dated

23rd day of September 2026

Hon. Gary D.

Roberts

Judge of the

Superior Court